



CHAPTER ii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Alexander Scott's Hospital and the North of Scotland College of Agriculture. A.D. 1914.
[30th April 1914.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Alexander Scott's Hospital and the North of Scotland College of Agriculture Order Confirmation Act 1914. Short title.

[Ch. ii.] *Alexander Scott's Hospital and the North of* [4 GEO. 5.]
Scotland College of Agriculture Order Confirmation Act, 1914.

A.D. 1914.

S C H E D U L E.

*Provisional Order to authorise the sale and purchase of the
Estate of Craibstone in the county of Aberdeen to make
provision as to the investment of the proceeds of sale
and for other purposes.*

WHEREAS the late Alexander Scott of Craibstone by trust disposition and deed of settlement (herein-after referred to as "the said trust disposition") dated the eighth day of June one thousand eight hundred and twenty-four and registered in the books of Council and Session on the eighth day of July one thousand eight hundred and thirty-three inter alia gave granted and disposed to and in favour of the Trustees therein named and designed the estate of Craibstone in the parish of Newhills and county of Aberdeen upon the trusts and for the uses intents and purposes contained in the said trust disposition by which said trust disposition he declared that his said Trustees should hold the residue and remainder of his whole heritable and movable estate for the purposes of erecting establishing and endowing a hospital or receptacle for the maintenance aliment clothing and lodging of old men and old women in the town of Huntly the said hospital or receptacle to be known and called by the name of Alexander Scott's Hospital and also his intention and resolution to make a mortification of the said residue and remainder of his said estate which intention and resolution were given effect to:

And whereas by the said trust disposition it is amongst other things provided as follows:—

" In case it shall appear to my said Trustees above-named
" or those to be assumed as aforesaid after they have
" maturely and deliberately considered the matter and
" had some experience of the yearly returns and pro-
" bable increase of value from the wood and otherwise
" of my said estate of Craibstone that it is not likely
" to be such a beneficial investment for the purposes
" of the mortification as some other landed property it
" shall in that event be in the power of my Trustees
" * * * to sell and dispose of the said lands and

“ estate of Crabestone by public roup or private bargain A.D. 1914.
“ * * * at the best and highest price which can be
“ obtained therefor and thereupon to grant disposition
“ thereof to the purchaser containing all usual and
“ necessary clauses with obligations of absolute warran-
“ dice against me and my heirs and declaring that the
“ purchaser or purchasers shall have no concern with
“ the application of the price or the conditions declara-
“ tions and appointments contained in these presents
“ and thereafter my said Trustees shall be bound and
“ obliged as soon as conveniently can be done to invest
“ and lay out the said residue and remainder of my
“ estate in the purchase of other lands situated in the
“ county of Aberdeen if such can be reasonably had
“ and failing thereof in any of the adjoining counties
“ and shall settle and secure the lands so to be pur-
“ chased by a deed or deeds for the purposes of the
“ mortification for the said hospital allanarly * * *”
and “ further for carrying into effect this mortification
“ when the whole subjects and effects belonging to me
“ shall be realised and the residue and remainder of
“ my whole means and estate finally and completely
“ ascertained and settled my said Trustees and executors
“ under these presents and those to be assumed by
“ them as after-mentioned shall be bound and obliged
“ to wind up this present trust denude themselves and
“ execute such deed or deeds as may be found requisite
“ and necessary by legal advice for vesting conveying
“ and transferring the said whole residue and remainder
“ of my means and estate along with the rights vouchers
“ titles and securities thereof in trust always and
“ specially for the uses ends and purposes of this
“ mortification according to the several declarations
“ appointments and conditions foresaid all which shall
“ be fully contained and verbatim inserted in such deed
“ or deeds and infeftments following thereon” :

And whereas it is by the said trust disposition declared that the persons to whom the said whole residue and remainder of the said estate should be so conveyed and made over for the purposes of the mortification were [the trustees therein mentioned and such others as might be assumed in virtue of the powers therein

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A.D. 1914. — conferred and along with them the five trustees and managers for the said hospital in virtue of their respective offices all as therein set forth:

And whereas in implement of the foresaid provisions and on the narrative inter alia that having to the extent therein specified carried out and fulfilled the purposes of the said trust disposition and having found that they were then enabled to carry out the ultimate intentions of the said Alexander Scott as therein specified in regard to the said residue and remainder of his trust estate to the effect of establishing the said hospital a deed of denuding and conveyance was granted by the original surviving and assumed Trustees of the said Alexander Scott in favour of themselves and the Right Reverend Robert Eden Doctor of Divinity Scotch episcopal bishop of the diocese of Moray the Reverend William Duguid minister of the parish of Glass moderator of the presbytery of Strathbogie Archibald Davidson Esquire advocate sheriff of Aberdeenshire the Reverend James Walker established minister of the parish of Huntly the Reverend John Ferguson Macdonald Scotch episcopal minister at Huntly and to and in favour of the Scotch episcopal bishop of the diocese of Moray for the time being the moderator of the presbytery of Strathbogie for the time being the sheriff depute of Aberdeenshire for the time being the established minister in the parish of Huntly for the time being and the Scotch episcopal minister at Huntly for the time being perpetually as Trustees for the management and direction of the said hospital which said deed of denuding and conveyance is dated the eleventh sixteenth and nineteenth days of November one thousand eight hundred and fifty-seven and is recorded in the sheriff court books of the county of Aberdeen on the twelfth day of March one thousand eight hundred and sixty-six:

And whereas the Trustees acting under the said deed of denuding were together with certain additional ex officio Trustees appointed by Alexander Scott's Hospital Act 1868 incorporated as the Trustees and Managers of Alexander Scott's Hospital (herein-after called "the Trustees") by the said Act of 1868 and further powers were conferred on the Trustees by the Alexander Scott's Hospital Order Confirmation Act 1905:

And whereas the Trustees are the heritable proprietors in trust of the said estate of Craibstone:

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And whereas in the year one thousand nine hundred and four there was established a voluntary association called the Aberdeen and North of Scotland College of Agriculture (hereinafter called "the voluntary association") having for its object the development in the North of Scotland of education and research in agriculture forestry and allied subjects and the institution of research stations or experimental farms : A.D. 1914.

And whereas the voluntary association established a college or school for the aforesaid purposes which has proved successful and beneficial to the public and particularly to persons interested in agriculture forestry and allied subjects :

And whereas in the year one thousand nine hundred and ten the voluntary association agreed with the Trustees to lease for the purposes of the said college the mansion house the home farm or mains of Craibstone and the shootings on the estate of Craibstone :

And whereas it would have been necessary for the voluntary association to expend considerable capital sums on the subjects leased in order to render them suitable for the purposes of the said college :

And whereas it was considered desirable for the development of the said work of education and research in agriculture and forestry that the voluntary association should become the owner of the lands and buildings used for the said purpose :

And whereas the voluntary association was not at that time possessed of funds to purchase the subjects leased or any additional lands required and it was arranged that on the voluntary association obtaining the necessary funds the Trustees should sell the estate of Craibstone to them on terms to be after adjusted :

And whereas the voluntary association entered upon the occupancy of the said mansion house home farm and shootings of the said estate under lease for a period of twenty-one years from the term of Martinmas one thousand nine hundred and ten :

And whereas in the year one thousand nine hundred and twelve the voluntary association was dissolved and an association was incorporated under the Companies (Consolidation) Act 1908 by the name of the North of Scotland College of Agriculture (hereinafter called "the college") :

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— And whereas the principal objects for which the college was incorporated were to establish in the North of Scotland and to equip carry on maintain and develop a college or school having for its main objects the communication of and instruction in and the study of agriculture and the promotion of agricultural research and also to take over carry on and develop the work which was then being conducted by the voluntary association and subject to the provisions of the Companies (Consolidation) Act 1908 to take over and grant discharges therefor as at the date of the incorporation of the college the whole rights funds and property belonging to the voluntary association :

And whereas the college obtained a licence from the Board of Trade dispensing with the use of the word "limited" as part of the name of the college in respect that no part of the funds of the college can be paid or transferred directly or indirectly by way of dividend or bonus or otherwise howsoever by way of profit to its members :

And whereas the college has accordingly established a college for amongst others the aforesaid purposes and has taken over the work which was being conducted by the voluntary association and the whole rights funds and property thereto belonging and the liabilities thereto attaching :

And whereas in the year one thousand nine hundred and twelve the college having obtained the necessary funds to purchase the estate of Craibstone requested the Trustees to sell the said estate to them :

And whereas the Trustees appointed a valuer to value the said estate which he did at the sum of seventeen thousand eight hundred and ninety pounds on the terms set forth in his valuation :

And whereas the Trustees were advised and intimated to the college that they had no power of sale under the said trust disposition but in order to implement the foresaid arrangement agreed to present a petition to the Court of Session for the necessary authority to sell the said estate of Craibstone to the college and also for power to the Trustees to invest the proceeds of such sale in trust securities instead of purchasing other lands in the county of Aberdeen or adjoining counties :

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And whereas the terms of a draft minute of sale were adjusted although no formal agreement was then executed and a petition was presented to the Second Division of the Court of Session on the eighteenth day of July one thousand nine hundred and twelve craving the court to grant power to the Trustees to sell and dispose of the said estate of Craibstone to the college by private bargain at the foresaid price of seventeen thousand eight hundred and ninety pounds and also to authorise the Trustees to invest the said sum in trust securities: A.D. 1914.

And whereas the Court of Session refused the prayer of the said petition on the ground that the said court had no power to vary the terms of the said trust disposition with regard to the investment of the purchase price:

And whereas the Trustees have agreed to sell the said estate to the college provided the necessary powers to sell the said estate and to invest the proceeds of sale in trust securities are conferred upon them and they are released from the aforesaid obligation to invest the said proceeds in the purchase of other lands in the county of Aberdeen or adjoining counties:

And whereas it is expedient that the said sale to and the purchase by the college of the said estate should be sanctioned and that the powers hereinafter contained as to the investment of the proceeds of the said sale should be conferred on the Trustees and that the minute of sale set forth in the schedule hereto should be confirmed:

And whereas it is expedient that the other provisions in this Order contained should be made:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

1. This Order may be cited as the Alexander Scott's Hospital and the North of Scotland College of Agriculture Order 1914 and shall come into operation on the date of the passing of the Act confirming the same. Short title and commencement.

2. The following words and expressions in this Order have the respective meanings hereby assigned to them unless there be Interpretation.

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A.D. 1914. — something in the subject or context inconsistent with or repugnant to such meaning (that is to say):—

“The Trustees” means the Trustees and Managers of Alexander Scott's Hospital incorporated by Alexander Scott's Hospital Act 1868;

“The college” means the North of Scotland College of Agriculture incorporated under the Companies (Consolidation) Act 1908;

“The estate of Craibstone” means the lands property and other subjects referred to in the minute of sale set forth in the schedule to this Order.

Confirmation of minute of sale.

3. The minute of sale between the Trustees of the first part and the college of the second part set forth in the schedule to this Order is hereby confirmed and made binding on the parties thereto and the Trustees and the college are hereby respectively empowered to carry the said minute of sale into effect.

As to investment of proceeds of sale.

4. Notwithstanding anything to the contrary contained in any Act order trust disposition or other instrument the Trustees may at their discretion and they are hereby authorised and empowered to invest the proceeds of sale of the estate of Craibstone (after deducting from such proceeds of sale all incidental expenses in connexion with such sale and investment) in securities in which trustees are by law for the time being authorised to invest trust moneys as they think fit and may from time to time vary such securities Provided always that the said proceeds of sale and the securities in which the same shall from time to time be invested shall be held by the Trustees upon the same trusts and to and for the same use intent and purpose as the estate of Craibstone was held by them immediately before the completion of the said sale and the income of the said proceeds of sale and securities shall be so applied accordingly.

Costs of Order.

5. The costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the college out of any funds or money in their hands.

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The SCHEDULE referred to in the foregoing Order.

A.D. 1914.

MINUTE OF SALE between the TRUSTEES AND MANAGERS OF ALEXANDER SCOTT'S HOSPITAL incorporated under Alexander Scott's Hospital Act 1868 heritable proprietors of the lands and others after-mentioned of the first part herein-after called the Sellers and the NORTH OF SCOTLAND COLLEGE OF AGRICULTURE incorporated under the Companies (Consolidation) Act 1908 and having their registered office in Aberdeen of the second part herein-after called the Purchasers.

Stamp.
Sixpence.

WHEREAS the sellers are heritable proprietors of the estate of Craibstone in the parish of Newhills and county of Aberdeen (herein-after called the estate) which is held by them for the purpose and under the powers still in force contained in the trust disposition and deed of settlement of the late Alexander Scott dated eighth June eighteen hundred and twenty-four and registered in the books of Council and Session eighth July eighteen hundred and thirty-three and under the powers and for the purposes of the said Alexander Scott's Hospital Act and the Alexander Scott's Hospital Order Confirmation Act 1905 and the purchasers are at present tenants under the sellers of a portion of the estate consisting of the mansion house and home farm of Craibstone and the shootings on the estate :

And whereas the purchasers desire to purchase the estate which the sellers are willing to sell to them at the price of seventeen thousand eight hundred and ninety pounds but in respect that neither the said trust disposition and deed of settlement nor the said Act of 1868 and the said Order of 1905 conferred power of sale upon the sellers they were unable so to do :

And whereas application was made by petition to the Court of Session for authority to sell the estate and invest the proceeds in trust securities but the said Court by interlocutor of third of December nineteen hundred and twelve refused the prayer of the petition and decerned :

And whereas it has been agreed that the parties hereto shall present a petition to the Secretary for Scotland praying him to grant a Provisional Order for the confirmation of the sale of the estate by the sellers to the purchasers at the price of seventeen thousand eight hundred and ninety pounds on the terms herein-after set forth :

Therefore the parties hereto have agreed and hereby agree as follows :—

First—The said parties shall present a petition to the Secretary for Scotland in December nineteen hundred and thirteen praying him to

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A.D. 1914. grant a Provisional Order for the confirmation of the sale of the estate by the sellers to the purchasers upon the terms herein-after set forth and for authority to the sellers to invest the proceeds of sale of the estate after deducting all incidental expenses in connexion with such sale and investment in securities in which trustees are by law for the time being authorised to invest.

Second—Subject to the terms and conditions hereof the sellers agree to sell to the purchasers and the purchasers agree to purchase from the sellers the subjects consisting of the lands of Craibstone in the county of Aberdeen as particularly described in the disposition granted by Major Lauchlan Duff Gordon Duff of Drummuir and Park Dr. James Milne physician and bank agent in Huntly William Murdoch solicitor in Huntly the Right Reverend Robert Eden D.D. then Scotch episcopal bishop of the diocese of Moray the Reverend William Masson minister of the parish of Botriphnie then moderator of the presbytery of Strathbogie the Reverend James Walker the established minister in the parish of Huntly and the Reverend John Ferguson Macdonald then Scotch episcopal minister at Huntly the then surviving accepting and acting Trustees for the management and direction of Alexander Scott's Hospital at Huntly under deed of denuding and conveyance and instrument of sasine following thereon specified and referred to in said disposition which bears date the twenty-seventh day of March and sixth day of April and is recorded in the Particular Register of Sasines &c. kept for the counties of Aberdeen and Kincardine at Aberdeen on the twelfth day of April all in the year eighteen hundred and sixty-six and in which the lands thereby conveyed are declared to be designed and known by the said name of Craibstone and the whole fittings and fixtures so far as belonging to the sellers in the mansion house and other houses on the estate.

Third—The estate is to be sold as aforesaid under burden of the feuduties teind duties and other burdens and of all servitudes or other rights affecting the same.

Fourth—The price of the subjects set forth in Article Second hereof hereby agreed to be sold is seventeen thousand eight hundred and ninety pounds and shall be paid by the purchasers to the sellers on the fifteenth day of May nineteen hundred and fourteen or one month after the date of the passing of the Act confirming the said Order whichever shall be the later date and shall thereafter bear interest at the rate of five per cent. per annum during the non-payment thereof until the actual completion of the purchase Entry to the said subjects shall be given in the event of the price being paid on the fifteenth day of May nineteen hundred and fourteen as at the twenty-eighth day of the said month and in the event of the price being paid one month after the date of the passing of the Confirming Act the entry shall be

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given at that date declaring that in the event of the entry being at the last-mentioned date the sellers shall be entitled to a proportion of the rents as from the said twenty-eighth day of May till the date of entry and shall pay a corresponding proportion of the public and parochial burdens. A.D. 1914.

Fifth—On payment of the said price and any interest due thereon the sellers shall execute and deliver to the purchasers a valid disposition prepared at mutual expense containing all usual and necessary clauses and a clause of warrandice as accords but under exception of all feu rights and current leases missives or other rights of occupation of tenants and occupiers of the estate or of parts thereof and along with the said disposition there shall be delivered to the purchasers the writs and title deeds of the estate as the same are specified in the inventory thereof annexed and subscribed as relative hereto with the exception of the writs and title deeds No. 21 Nos. 23 to 28 inclusive and No. 30 which excepted writs shall be retained by the sellers who shall be bound to exhibit and lend the same to the purchasers when required but only on receipt and obligation to re-deliver the same within a reasonable time and under a suitable penalty And in respect that the sellers know of no burdens or incumbrances affecting the estate other than those herein referred to or by the title deeds disclosed they shall not be bound to exhibit or deliver to the purchasers searches of incumbrances in either the land or the personal registers but in the event of the purchasers making a search for the prescriptive period which discloses any burdens or incumbrances on the record and in the event of such burdens or incumbrances being intimated to the sellers prior to the payment of the purchase price the sellers shall be bound to purge the record of such burdens or incumbrances.

Sixth—The purchasers shall have right to the rents and duties of the estate and shall be liable in payment of the feuduties and teind duties and the public parochial and Imperial burdens and fire insurance premiums or proportions thereof for the possession following the said date of entry and as from said date of entry shall relieve the sellers of all obligations undertaken by them to tenants and occupants of the estate under existing leases and missives or other writings formal or informal—the sellers relieving the purchasers of all such feuduties teind duties burdens and obligations exigible in respect of the period prior to said date of entry and the purchasers shall be liable in settlement and payment of all casualties of superiority or sums of money in lieu thereof which may be demanded at any time after the twentieth of June nineteen hundred and twelve (being the date of the amended valuation of the estate) and shall relieve the sellers of all such obligations accordingly.

Seventh—The parties agree that the tenancy of the purchasers in said mansion house home farm and shootings (the terms and conditions

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A.D. 1914. of which are contained in the lease thereof) shall be held to terminate as at the said date of entry up to which date the said tenancy shall subsist in all respects save that the agreement on the part of the sellers (the proprietors under the lease) to make payment to the purchasers (the tenants under the lease) of a sum of seven hundred pounds in full of the obligation to provide for the lighting of the mansion house is departed from and cancelled and both the said parties agree to mutually discharge each other as at the said date of entry of all obligations and prestations exigible under the said tenancy in their favour respectively And further it is agreed that should the sellers execute the repairs upon the whole houses and buildings on the subjects let to the purchasers under the said lease as specified in the report dated seventeenth April nineteen hundred and eleven prepared by Robert Williamson Walker land surveyor Aberdeen the purchasers undertake and agree on the completion of the purchase of the estate to repay to the sellers the amount expended by them in carrying out the said repairs.

Eighth—The said petition to the Secretary for Scotland to be made by the parties as aforesaid is undertaken without prejudice to the said existing tenancy and in the event of the Secretary for Scotland or Parliament declining to sanction the sale of the estate to the purchasers and/or refusing to grant power to the sellers to invest the proceeds in trust investments as herein-before mentioned these presents shall have no force or effect and the said tenancy shall continue in all respects as if these presents had never been entered into and the said lease shall thereupon remain in full force and effect.

Ninth—All questions and disputes which may arise between the parties hereto in relation to this minute of sale or to the intent or meaning thereof or to the carrying out of the same shall be referred to the Dean of the Faculty of Advocates Edinburgh for the time being as sole arbiter and his decision shall be final.

Tenth—This minute of sale shall be scheduled to the said Provisional Order and is subject to such alterations as the Secretary for Scotland or Parliament may think fit to make thereon and both the parties hereto undertake to use their best endeavours to obtain the granting of the said Provisional Order and parliamentary confirmation thereto declaring that in the event of the Secretary for Scotland or Parliament making any alteration hereon or on the terms of the said Provisional Order which upon the application of the sellers or purchasers the said Dean of Faculty is of opinion is material either of the said parties shall be entitled to resile from this minute of sale and in that event the Provisional Order shall not be proceeded with so far as it relates to the confirmation of the sale of the estate.

In witness whereof these presents written upon this and the two preceding pages of stamped paper by Peter Stewart residing in Aberdeen clerk to Morice and Wilson advocates there are along

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with the inventory of writs and title deeds hereto annexed and under the declaration that the word "all" occurring in the thirty-first line counting from the top of page second hereof is delete before subscription executed as follows They are subscribed for and on behalf of the purchasers by Garden Alexander Duff and Robert Hunter Nicol Sellar two of their governors and by George Hendry their secretary and are sealed with their common seal all at Aberdeen on the seventeenth day of October nineteen hundred and thirteen before these witnesses Charles Diack solicitor and assistant county clerk Aberdeen and John Taylor Boyd clerk in the county clerk's office Aberdeen and they are subscribed for and on behalf of the sellers by Alexander Smith and Thomas Alexander Duff two of their number and are sealed with their common seal all at Huntly on the twentieth day of October nineteen hundred and thirteen before these witnesses James Forbes Lumsden advocate in Aberdeen and Alexander McGillivray house steward at Alexander Scott's Hospital Huntly (Signed) Alexr. Smith (Signed) T. A. Duff (Signed) Jas. Forbes Lumsden witness Alexr. McGillivray witness (Signed) Garden A. Duff (Signed) Rob. H. N. Sellar (Signed) Geo. Hendry secretary (Signed) Charles Diack witness John T. Boyd witness (Seal.) (Seal.)

A.D. 1914.

INVENTORY of the WRITS and TITLE DEEDS of the LANDS and ESTATE
of CRAIBSTONE referred to in the preceding MINUTE OF SALE.

Nos. 1-21 inclusive being the writs and title deeds specified in the inventory thereof annexed to the articles of roup of the said estate of Craibstone dated fifth seventh eighth and twelfth March eighteen hundred and fifty.

22. The said articles and conditions of roup.

23. Deed of assumption by the trustees of the said Alexander Scott deceased in favour of Lauchlan Gordon Younger of Park dated fifth ninth fourteenth and twenty-second July and recorded in the register of probative writs kept for the county of Aberdeen second December eighteen hundred and fifty-two.

24. Deed of assumption by the said trustees of the said Alexander Scott in favour of Dr. James Milne physician and bank agent in Huntly dated thirteenth fifteenth twenty-second and twenty-seventh March eighteen hundred and fifty-six and recorded in the said register of probative writs fifth March eighteen hundred and fifty-seven.

25. Deed of assumption by the said trustees of the said Alexander Scott in favour of William Murdoch solicitor in Huntly dated seventh twelfth and fourteenth and recorded in the said register of probative

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A.D. 1914. writs the nineteenth all days of March eighteen hundred and fifty-seven.

26. Extract deed of denuding and conveyance granted by the surviving accepting and assumed trustees of the said Alexander Scott in favour of themselves and of the ex-officio trustees therein named and designed dated eleventh sixteenth and nineteenth November eighteen hundred and fifty-seven and with relative inventory of writs and title deeds annexed thereto registered in the sheriff court books of Aberdeenshire the twelfth day of March eighteen hundred and sixty-six.

27. Instrument of sasine in favour of the grantees under the said deed of denuding and conveyance registered at Aberdeen in the particular register of sasines &c. kept for the counties of Aberdeen and Kincardine on the third day of March eighteen hundred and sixty-six.

28. Disposition by the surviving accepting and acting trustees for the management and direction of Alexander Scott's Hospital at Huntly in favour of the Reverend Robert Eden D.D. then Scotch episcopal bishop of the diocese of Moray the Reverend James Walker then established minister in the parish of Huntly and the Reverend John Ferguson Macdonald then Scotch episcopal minister at Huntly as special trustees therein set forth dated twenty-seventh March and sixth April and registered at Aberdeen in the said particular register of sasines &c. the twelfth day of April all in the year eighteen hundred and sixty-six and having endorsed thereon writs of confirmation by inter alia the superiors of part of the said lands and estate of Craibstone.

29. Evidence copy of Alexander Scott's Hospital Act 1868 31 Vict. chap. 1.

30. Extract registered disposition by the said special trustees in favour of the trustees and managers of Alexander Scott's Hospital incorporated under Alexander Scott's Hospital Act 1868 dated fifth and tenth April and twenty-ninth October and recorded at Edinburgh in the General Register of Sasines for publication and as in the books of the Lords of Council and Session for preservation the first day of November all in the year eighteen hundred and seventy-two.

31. Evidence copy of Alexander Scott's Hospital Order Confirmation Act 1905 5 Edwd. VII. chap. 45.

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